

51	Sheehan vs. Sheehan 26-01546405	Demurrer to Complaint Tentative Ruling to be updated in the morning.
53	Rebuyon vs. Serra Sol Memory Care 26-01561508	Motion to Compel Arbitration Defendant SJC-Operations, LP dba Serra Sol's (Erroneously sued as Serra Sol Memory Care) ("Defendant") unopposed Motion to Compel Arbitration is GRANTED. Preliminarily, both the Federal Arbitration Act ("FAA") and the California Arbitration Act require the existence of a valid Arbitration Agreement, before arbitration can be compelled. (See 9 U.S.C. §2 and Code of Civ. Proc. §1281.2). "If a party to a civil action asks the court to compel arbitration of the pending claim, the court must determine in a summary proceeding whether an 'agreement to arbitrate the controversy exist.'" (Iyere v. Wise Auto Group (2023) 87 Cal.App.5th 747, 754.) "Because the existence of the agreement is a statutory prerequisite to granting the petition, the petitioner bears the burden of proving its existence by a preponderance of the evidence. If the party opposing the petition raises a defense to enforcement...that party bears the burden of producing evidence of, and proving by a preponderance of the evidence, any fact necessary to the defense." (Rosenthal v. Great Western Fin. Securities Corp. (1996) 14 Cal.4th 394, 413.) The right to arbitration depends upon contract; a petition to compel arbitration is simply a suit in equity seeking specific performance of that contract. (Little v. Pullman (2013) 219 Cal.App.4th 558, 565.) The petitioner bears the burden of proving the existence of a valid arbitration agreement by the preponderance of the evidence, and a party opposing the petition bears the burden of proving by a preponderance of the evidence any fact necessary to its defense. (Id.) In these summary proceedings, the trial court sits as a trier of fact, weighing all the affidavits, declarations, and other documentary evidence, as well as oral testimony received at the court's discretion, to reach a final determination. (Id.) As this motion is unopposed, it is undisputed that the FAA applies here. Further, it is undisputed that Plaintiff, through her daughter, Arlene Rebuyon, acting as Plaintiff's attorney-in-fact, agreed to arbitrate various claims arising out of her stay with Defendant, including "all disputes arising from or related to this Agreement or to your rights, obligations, care, or services at the Community shall be resolved by submission to neutral, binding arbitration...and it includes, without limitation, personal